

or in respect of, the matters before him, and were wholly unwarranted on the said occasion, of all which premises the defendant had notice before and at the time of the committing of the said grievance, and then well knew.

1868
SCOTT
v.
STANSFIELD.

Demurrer and joinder.

Quain, Q.C. (Kemplay with him), in support of the demurrer. The plea and replication taken together raise the question whether the defendant is liable to an action in respect of the words mentioned in the declaration, such words having been spoken by him in his capacity of judge, but spoken falsely, maliciously and irrelevantly. There is no authority for the position that an action will lie against a judge for anything done by him while acting in the exercise of his jurisdiction. The remedy for any official misconduct on the part of the defendant is by application to the Lord Chancellor for his removal. The principle which governs these cases is laid down in the case of *Floyd v. Barker*. (1) That principle has been followed in a long series of decisions, see *R. v. Skinner* (2); *Miller v. Hope* (3); *Jekyll v. Sir John Moore* (4); *Revis v. Smith* (5); *Henderson v. Broomhead* (6); *Fray v. Blackburn*. (7) It is quite clear from these cases that no action will lie against a judge for a judicial act, though it be alleged to have been done maliciously and corruptly. The true ground of a judge's exemption from actions is to be found, with a review of the older authorities, in the judgment of Chief Justice Kent, in the case of *Yates v. Lansing*. (8) In the case of *Thomas v. Churton* (9) it was held, that a coroner holding an inquest is not liable to an action for words falsely and maliciously spoken by him in his address to the jury; but Cockburn, C.J., there said (10): "I am reluctant to decide, and will not do so until the question comes before me that if a judge abuses his judicial office by using slanderous words, maliciously and without reasonable and probable cause, he is not to be liable to an action." The present replication is probably founded upon that dictum.

(1) 12 Rep. 23.

(2) Lofft, 55.

(3) 2 Shaw, Sc. App. Cases, 125.

(4) 2 B. & P. (N. R.) 341.

(5) 18 C. B. 126. 2 Jan MS 614

(6) 4 H. & N. 569. 5 Jan MS 1175

(7) 3 B. & S. 576.

(8) 5 Joh. 282; 9 Joh. 395.

(9) 2 B. & S. 475. 8 Jan MS 795

(10) 2 B. & S. at p. 479. 8 Jan MS 795